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DOCUMENT 2: AI ACT RISK CLASSIFICATION

Regulation (EU) 2024/1689 - Four Risk Categories

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The AI Act uses a risk-based approach, classifying AI systems into four categories based on their potential harm to individuals and society.

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CATEGORY 1: UNACCEPTABLE RISK (PROHIBITED)

Reference: Article 5

Applicable from: August 2025

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DEFINITION:

AI systems whose risks to fundamental rights, safety, and democratic values are considered so severe that they are entirely prohibited.

CRITERIA:

- Exploits vulnerabilities of specific groups (age, disability)
- Uses subliminal or manipulative techniques affecting free will
- Enables mass surveillance or social control by public authorities
- Undermines democratic processes or fundamental rights

PROHIBITED PRACTICES (Article 5):

1. Cognitive behavioural manipulation: AI systems that deploy subliminal techniques or exploit psychological weaknesses to distort behaviour in a harmful way.
2. Social scoring by public authorities: AI systems evaluating or classifying natural persons based on social behaviour or personal characteristics,

leading to detrimental or disproportionate treatment.

3. Real-time remote biometric identification in public spaces for law enforcement (with narrow exceptions for specific crimes, terrorism, missing persons).
4. Biometric categorisation inferring sensitive attributes: Systems that categorise people based on biometric data to deduce race, political opinion, trade union membership, religious beliefs, sexual orientation.
5. Emotion recognition in workplace and educational settings.
6. Untargeted scraping of facial images from the internet or CCTV to build facial recognition databases.
7. AI systems assessing the risk of criminal offences based on profiling or personality traits.
8. AI systems manipulating vulnerable groups (children, people with disabilities) against their interests.

EXAMPLES of prohibited AI:

- A social credit scoring system by a government
- Real-time facial recognition cameras in a shopping centre used by police without specific authorisation
- An app that reads emotions of students during exams to assess engagement
- Chatbots designed to manipulate elderly users into purchases

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CATEGORY 2: HIGH RISK

Reference: Article 6 + Annex III

Applicable from: August 2026

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DEFINITION:

AI systems that pose significant risks to health, safety, or fundamental rights and are subject to strict compliance requirements before deployment.

CRITERIA (Article 6):

An AI system is high-risk if it meets ONE of these conditions:

- a) It is a safety component of a product covered by EU harmonisation legislation listed in Annex I (e.g., medical devices, machinery, aviation), AND that product requires third-party conformity assessment.
- b) It falls within one of the eight areas listed in Annex III (regardless of being a product component).

ANNEX III - HIGH-RISK AI SYSTEMS (8 areas):

1. Biometric identification and categorisation of natural persons
(except prohibited ones under Article 5)
2. Management and operation of critical infrastructure
(electricity, water, gas, transport, internet)
3. Education and vocational training
(determining access, admissions, evaluating learning outcomes)
4. Employment, workers management and access to self-employment
(recruitment, CV sorting, task allocation, monitoring, promotion, termination)
5. Access to and enjoyment of essential private services and public

services and benefits

(credit scoring, insurance risk assessment, social benefits eligibility,
emergency services dispatch)

6. Law enforcement

(individual risk assessment, polygraph-like tools, crime analytics,
crime prediction based on profiling)

7. Migration, asylum and border control management

(risk assessment of individuals, verifying authenticity of documents,
processing applications)

8. Administration of justice and democratic processes

(assisting judicial authorities in researching and interpreting facts
and law, influencing elections)

EXAMPLES of high-risk AI:

- CV screening software used in recruitment
- Credit scoring algorithms used by banks
- Medical diagnosis software (e.g., AI reading radiology scans)
- AI used in court decisions or sentencing recommendations
- Border control biometric verification systems
- AI determining social benefit eligibility

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CATEGORY 3: LIMITED RISK

Reference: Articles 50 and 52

Applicable from: August 2026

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DEFINITION:

AI systems that interact with humans or generate content, subject to transparency obligations so users know they are interacting with AI.

CRITERIA:

- AI interacts directly with humans (chatbots, virtual assistants)
- AI generates synthetic content (images, audio, video, text)
- AI performs emotion recognition or biometric categorisation

TRANSPARENCY OBLIGATIONS:

- Chatbots must inform users they are talking to an AI
- Deepfakes and synthetic media must be labelled as AI-generated
- Emotion recognition systems must inform persons being assessed

EXAMPLES of limited risk AI:

- Customer service chatbots (must disclose they are AI)
- AI-generated images or videos (must be labelled)
- Virtual assistants (Siri, Alexa in certain contexts)
- AI writing assistants generating articles

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CATEGORY 4: MINIMAL RISK

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DEFINITION:

All other AI systems not covered by the above categories. No mandatory legal obligations apply, though voluntary codes of conduct are encouraged.

EXAMPLES of minimal risk AI:

- AI-powered spam filters
- AI in video games
- AI recommendation engines (Netflix, Spotify)

- AI inventory management systems
- Simple chatbots with no sensitive use case

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SUMMARY TABLE

Category	Risk Level	Action Required	Article
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Unacceptable	Prohibited	Complete ban	Article 5
High Risk	Significant	Conformity assessment	Article 6
		+ strict obligations	Annex III
Limited Risk	Moderate	Transparency obligations	Art. 50/52
Minimal Risk	Low	Voluntary codes only	N/A

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Source: Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024. OJ L, 2024/1689, 12.7.2024.
ELI: <http://data.europa.eu/eli/reg/2024/1689/oj>

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